

Malawi 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Malawi during the year.

Significant human rights issues included credible reports of: torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest or detention; and serious restrictions on freedom of expression and media freedom, including unjustified arrests or prosecutions of journalists.

The government took credible steps to identify and punish officials who committed human rights abuses, but impunity remained a problem.

Section 1. Life

a. Extrajudicial Killings

There were no reports that the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution and law provided for freedom of expression, including for members of the press and other media, and the government respected this right with some exceptions.

According to the nongovernmental organization (NGO) End Blasphemy Laws, the law made insulting the religion of another person a misdemeanor, punishable by imprisonment of up to one year. The NGO found no indication this law was enforced.

Physical Attacks, Imprisonment, and Pressure

There were reports authorities harassed and occasionally arrested journalists for their reporting. In early February, journalist Gregory Gondwe went into hiding following his January 29 online investigative report regarding the Malawi Defence Force's dealings with Zuneth Sattar, a businessman who was under investigation for corruption. Following publication, Gondwe was alerted by senior government officials that authorities intended to arrest him for allegedly "endangering state security" and detain him incommunicado unless he revealed his report sources. In August, Gondwe and his family left the country. In 2022, police arrested and detained Gondwe and tried to compel him to disclose his sources for a

similar story alleging government corruption.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law allowed workers, except for military personnel and police, to form and join trade unions of their choice without prior authorization. The law required unions to register with the Registrar of Trade Unions and Employers' Organizations in the Ministry of Labour; registration requirements were not onerous, but failure to meet annual reporting requirements could result in cancellation of a union's registration. The law prescribed the articles trade union constitutions had to include and limited certain individuals from holding union offices or positions of responsibility. The law placed some restrictions on the right to collectively bargain, including requirements of prior authorization by authorities, and bargaining status. Of the 72 registered unions, 68 had registered collective bargaining agreements, representing 94 percent coverage across various sectors. The law provided for unions to conduct their activities without government interference. The law also prohibited antiunion discrimination and provided for remedial measures in cases of dismissal for union activity. The law did not specifically prohibit retaliation against strikers or actions against unregistered unions.

The law required at least 20 percent of employees (excluding senior

managerial staff) belong to a union before it could engage in collective bargaining at the enterprise (factory) level, and at least 15 percent of employees were required to be union members for collective bargaining at the sector (industry) level. The law provided for the establishment of industrial councils in the absence of collective agreements for sector-level bargaining. Industrial council functions included wage negotiation, dispute resolution, and industry-specific labor policy development.

The law allowed members of a registered union to strike after going through a mandatory mediation process overseen by the Ministry of Labour. A strike could take place only after failure of a lengthy settlement procedure, including seven days' notice of a strike and a 21-day conciliation process as set out in the law. An amendment to the Employment Act and Labour Relations Act allowed employers to deduct wages from striking employees if they were on strike for more than three days per year. The law also required the labor minister to apply to the Industrial Relations Court to determine whether a strike involved an "essential service," the interruption of which would endanger the life, health, or personal safety of part of the population. There were no special laws or exemptions from regular labor laws in export-processing zones. The law did not apply to most workers who were in the informal sector without work contracts.

The government did not effectively enforce applicable labor laws.

Throughout the judicial system, lack of capacity resulted in delays of some

labor cases, and the Industrial Relations Courts registered a backlog of labor disputes cases, which was attributed to lack of knowledge of labor laws and lack of engagement among labor stakeholders. Small fines for most violations were less than those for other laws involving denials of civil rights. Provisions existed for punishment of up to two years' imprisonment, but no convictions were reported. Penalties were never applied against violators.

Freedom of association and the right to collective bargaining were adequately respected for those in the formal sector. Union membership among workers was low due to the small percentage of the workforce in the formal sector. The law did not provide for the creation of trade unions for self-employed informal-sector workers, but approximately 15,000 of an estimated two million informal workers were organized in the Malawi Union for the Informal Sector (MUFIS), which was affiliated with the Congress of Trade Unions. MUFIS worked with district councils to address matters affecting informal workers due in part to a Ministry of Labour decision that MUFIS did not have sufficient standing to bargain collectively with employers.

Arbitration rulings were legally enforceable; however, the Industrial Relations Court did not monitor cases or adequately enforce the laws. The law restructured the Industrial Relations Court to require it to have permanent staff only, thus eliminating the requirement of employer and employee panelists.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The labor minister set the minimum wage rate for all formal sectors based on recommendations of the Tripartite Wage Advisory Board composed of representatives of labor, government, and employers. The minimum wage was set below the World Bank's poverty income level.

The legal workweek was 48 hours, with a mandatory weekly 24-hour rest period. The law required premium payment for overtime work and prohibited compulsory overtime.

Work week standards were not effectively enforced, and employers frequently violated statutory time restrictions. Alleged violations of wage, hour, and overtime laws were believed to be widespread and common across both the private and public sectors.

Occupational Safety and Health

The law established occupational safety and health (OSH) standards that were appropriate for the main industries in the country. Workers,

particularly in industrial jobs, often worked without basic safety clothing and equipment. Workers harvesting tobacco leaves generally did not wear protective clothing and absorbed up to the equivalent of 50 cigarettes worth of dissolved nicotine daily through their skin. The government rarely identified in a proactive manner unsafe conditions or responded to workers' OSH complaints.

Workers had the right to remove themselves from dangerous work situations without jeopardy to continued employment. Workers dismissed for filing complaints regarding workplace conditions had the right to file a complaint at the Labour Office or sue the employer for wrongful dismissal; however, these processes were not widely publicized, and workers were unlikely to exercise these rights. Authorities did not effectively protect employees in this situation.

Wage, Hour, and OSH Enforcement

The Ministry of Labour's Directorate of Occupational Safety and Health was responsible for enforcement of wage and hour laws, but the laws were not enforced effectively. By law labor inspectors could make unannounced inspections but lacked the authority to initiate sanctions. The government did not provide information on the number of labor inspectors nor on government actions during the year to prevent violations, particularly regarding vulnerable groups.

The Ministry of Labour did not effectively enforce laws related to wages, or overtime. The Ministry of Labour's enforcement of health and safety standards was also poor. The law specified fines and imprisonment for violations, but these penalties were rarely applied against violators and, when applied, were less than those for similar crimes. No reports of jail terms were ever reported. The government rarely took actions to prevent violations, including for vulnerable populations.

Migrant workers were entitled to the same legal protections, wages, and working conditions as citizens if they complied with immigration laws. Those persons not in compliance, however, lacked these protections and were subject to deportation.

More than 88 percent of the workforce was engaged in the informal sector. A study by the Congress of Trade Unions found informal workers endured unsafe and unhealthy working conditions, but labor laws did not protect workers outside the formal sector or part-time workers.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention, but the government did not always observe these prohibitions. The law provided for the right of any person to challenge the lawfulness of their arrest or detention but did not provide for compensation if the person was found to have been unlawfully detained. Lack of knowledge of statutes and of access to representation meant detainees rarely challenged the legality of their detention.

Police could arrest suspects without a warrant if they had reasonable grounds to believe a crime was being or had been committed, and most arrests were made without warrants. Only in cases involving corruption or white-collar crime were arrest warrants issued by a duly authorized official based on evidence presented. The law provided detainees the right to have access to legal counsel and be released from detention or informed of charges by a court within 48 hours of arrest, but authorities often ignored these rights. Police use of temporary remand warrants to circumvent the 48-hour rule was reportedly widespread. Police frequently demanded bribes to authorize bail. Bail was often granted to reduce overcrowding in jails, rather than because of legal merit. While relatives were sometimes denied access to detainees, there were no reports detainees were held incommunicado for extended periods of time.

Detainees who could afford counsel were able to meet with counsel in a

timely manner. The law required the government to provide free legal services to indigent detainees through the Legal Aid Bureau, but defense counsel was not provided to many defendants.

The constitution and law prohibited arbitrary arrest, unlawful detention, and false arrest. Although police use of antivagrancy laws to justify arbitrary arrests was struck down as unconstitutional, there were reports police made arrests based on other provisions such as “conduct likely to cause breach of the peace” or “obstruction of a police officer.” The Malawi Human Rights Commission (MHRC) received four reports of arbitrary arrest during the year.

Lengthy pretrial detention was a problem and, despite a statutory 90-day limit on pretrial detention, the actual length of pretrial detention frequently equaled or exceeded the maximum sentence for the alleged crime.

Authorities reportedly held most detainees charged with homicide for two to three years before trial. There was evidence some detainees charged with homicide remained in prison awaiting trial for even longer periods, but reliable information on the number and status of these detainees was unavailable. The judiciary’s administrative problems led to court backlogs that effectively denied expeditious trials for most defendants and kept some defendants in pretrial detention for long periods.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at [https://www.state.gov/trafficking in persons report/](https://www.state.gov/trafficking-in-persons-report/).

Section 3. Security of the Person

Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibited the use of torture or cruel, inhuman, and degrading treatment or punishment, but there were credible reports government officials employed these practices. Police sometimes used excessive force and other unlawful practices, including torture, to coerce confessions from detained suspects. A 2021 report by the government-chartered MHRC, the latest available, stated torture was widespread in prisons. The NGO Centre for Human Rights Education, Advice, and Assistance stated that from January to August, it provided free legal assistance to 174 inmates who claimed to have been tortured in various detention centers.

NGOs that assisted persons engaged in commercial sex reported police officers regularly demanded sexual favors from such individuals under the threat of arrest.

Impunity was a widespread problem in the security forces, particularly among police officers. Perpetrators of abuses were occasionally punished administratively, but investigations often were delayed, abandoned, or remained inconclusive.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The law set the minimum age for marriage at 18, but the law was not enforced effectively. According to UNICEF, 46 percent of girls were married before age 18, and 9 percent of girls were married before age 15. Some traditional leaders annulled early marriages and returned the girls involved to school. Public awareness messaging to prevent early marriage was carried out mainly by NGOs.

c. Protection to Refugees

The government did not always cooperate with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, asylum seekers, and other persons of concern.

Provision of First Asylum

The law provided for the granting of refugee status. The government failed to review the cases of most asylum seekers. At least 16,000 persons waited more than three years for a refugee status determination.

Newly arriving asylum seekers were held at the Karonga transit center for an extended period, where they were not registered as asylum seekers and did not have full access to services. The government's refusal to provide transportation of asylum seekers from the transit center to the Dzaleka Refugee Camp facilitated the proliferation of human trafficking and smuggling along the route.

d. Acts of Antisemitism and Antisemitic Incitement

The Jewish community was very small, and there were no known reports of antisemitic incidents.